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New bill eliminates single-family zoning

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In what supporters say is an effort to address the rising cost of housing in California, the state's legislators voted this week in favor of a bill that would make it easier for property owners to subdivide their single-family lots and build up to two housing units on each, amounting to a total of four.

Some analysts suggest the bill could allow for up to 10 units under certain circumstances.

Dubbed the California Housing Opportunity and More Efficiency Act, Senate Bill 9 requires cities to approve any proposed housing development containing no more than two residential units within a single-family residential zone without discretionary review or hearing.

Authored by state Senate leader Toni Atkins (D-San Diego), SB 9 passed the Assembly on Aug. 26 (45-19) and the Senate on Aug. 30 (28-7). It now heads to the desk of the governor, who has not yet indicated his position on the bill.

Voting in opposition were three local Assembly members: Jacqui Irwin (D-Camarillo), Richard Bloom (D-Santa Monica) and Jesse Gabriel (D-Woodland Hills), whose territories stretch from Santa Monica to Oxnard.

Irwin, a former Thousand Oaks City Council member, told the Acorn she does not support a one-size-fits-all approach to solving what she called "an affordable housing crisis" in the state.

"Requiring cities to approve lot splits completely takes away the local control," said Irwin, whose 44th District includes Thousand Oaks, Moorpark, Camarillo, Oxnard and Port Hueneme. "It doesn't allow for local considerations such as oak tree ordinances, water, traffic, parking. Cities are required to plan for expanded housing, and they should determine that based on local conditions and infrastructure considerations."

The only local legislator to vote for the bill was Suzette Valladares (R-Santa Clarita), whose district includes most of Simi Valley.

"I hear every day from people who are considering leaving California because it's simply too expensive to live here," Valladares said. "I believe that this bill is a small step to making housing more affordable to many Californians while providing important protections and financial stability for homeowners."

Assemblymember Steve Bennett (D-Ventura), who represents parts of Oxnard up through Santa Barbara as well as Santa Paula, Ojai and Somis, did not vote.

Likewise, state Sen. Henry Stern (D-Calabasas) did not cast a vote. Stern, who is awaiting the birth of his first child, said he had hoped to vote remotely but was denied permission to do so. Had he been allowed, Stern told the Acorn, he would have voted no.

"I didn't support SB 9 the first time around and would not have changed my position this time around had I been afforded the ability to vote," he said.

Housing push

According to estimates from UC Berkeley's Terner Center for Housing Innovation, existing laws allow as many as 1.8 million accessory dwelling units, or small homes added to existing lots, to be built in California. If SB 9 passes,

that figure would rise significantly.

"With SB 9, we estimate that approximately 700,000 additional new units would become market feasible, representing a 40% increase in existing development potential across California's single family housing parcels," the center's July report said.

While some housing advocates and the development/ construction sector support the bill, many residents and cities throughout the state do not appear to share their enthusiasm.

A recent David Binder Research poll commissioned by housing rights advocate group Housing is a Human Right showed 63% of those polled opposed SB 9.

The City of Thousand Oaks sent the state a letter the day of the vote officially opposing SB 9, saying it "will not spur much-needed housing construction in a manner that supports local flexibility, decision making and community input."

SB 9 removes transparency by requiring cities to ministerially approve split lots without (California Environmental Quality Act) evaluation, review by its planning commission and local community input, the letter signed by Mayor Claudia Bill-de la Peña said.

The Simi Valley City Council also opposes SB 9. Letters were sent reflecting that position, Samantha

Argabrite, deputy city manager for Simi Valley, said.

SB 9 claims to address the housing crisis in California but it doesn't address affordability.

"The state created the housing crisis when they took away redevelopment (agencies), which took away cities' ability to create and invest in affordable housing. Since then, (the state has) been implementing these 'solutions' that aren't as effective as what we had," Argabrite said. "Simi Valley alone invested over $4 million in affordable housing each year when redevelopment existed."

Irwin supports the idea of bringing back funding for redevelopment.

"California has an affordable housing crisis, and I have supported bills at the state level that have given cities tools to deal with that issue," she said. "When I was on the (Thousand Oaks) City Council, we approved an inclusionary housing policy and invested millions of dollars in affordable housing through redevelopment. Unfortunately, that program was ended by the state, and there continues to be resistance to bringing back a funding source to give cities the resources they need to help build affordable housing."

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